

HOUSE No. 1638

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to retirement reporting.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1638

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 1638) of Michael S. Day relative to retirement reporting. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1445 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to retirement reporting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 15 of chapter 32 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out paragraph (5) and inserting in place thereof the following
3 paragraph:-

4 (5) If the attorney general or a district attorney becomes aware of a final conviction of a
5 member of a retirement system under circumstances which may require forfeiture of the
6 member's rights to a pension, retirement allowance or return of accumulated total deductions
7 pursuant to this chapter, section 58 or 59 of chapter 30 or section 25 of chapter 268A, the
8 attorney general or district attorney shall immediately notify the commission of such conviction;
9 provided, however, that the commission shall not report such conviction to the member's
10 retirement board or employer unless the commission: (i) has determined that the conviction

11 requires forfeiture of that member's rights to a pension, retirement allowance or return of
12 accumulated total deductions pursuant to this chapter, section 58 or 59 of chapter 30 or section
13 25 of chapter 268A; and (ii) is directing that member's retirement board or employer to take
14 action to effectuate such forfeiture.